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Tentative Ruling

Re: ***Elsayed v. Viral Vamp LLC, et al.***
Superior Court Case No. 25CECG05879

Hearing Date: August 13, 2026 (Dept. 403)

Motion: by Defendants to Transfer Venue, or in the Alternative,
Compel Arbitration

Tentative Ruling:

To deny Defendants' motion to transfer venue.

To grant Defendants' motion to compel arbitration and to stay this action pending the resolution of arbitration.

Explanation:

Defendants Viral Vamp LLC, Viral Vamp Distributor LLC, and Kade Roberston, with joinder by Brady Carson, move the court for an order transferring venue to Volusia County, Florida pursuant to Code of Civil Procedure section 397. Defendants argue for the enforcement of a forum selection clause in the contract at issue in the plaintiff's complaint and additionally assert that because all defendants are located in Florida, they entered into the contract in Florida, and they were to perform the obligations of the contract in Florida that the proper venue for the action is within the State of Florida.

Where, as here, none of the defendants reside in the State of California, the action may be tried in the superior court in any county the plaintiff designates in the complaint. (Code Civ. Proc., § 395, subd. (b).) Accordingly, Fresno County is a proper venue for the action under the Code of Civil Procedure.

"In California, the procedure for enforcing a forum selection clause is a motion to stay or dismiss for forum non conveniens pursuant to Code of Civil Procedure sections 410.30 and 418.10 [citation], but a motion based on a forum selection clause is a special type of forum non conveniens motion." (*Berg v. MTC Electronics Technologies* (1998) 61 Cal.App.4th 349, 358.) Such a motion is made pursuant to the statutes governing forum non conveniens as they authorize a trial court to decline jurisdiction and allow the court to stay or dismiss the action. (*Cal-State Business Products & Service, Inc. v. Ricoh* (1993) 12 Cal.App.4th 1666, 1680; *Furda v. Superior Court* (1984) 161 Cal.App.3d 418, 425.)

The grounds for defendants' motion set forth in the moving papers will not provide the relief they seek in enforcing the forum selection clause within the parties' Amazon ECommerce Store Management Service Agreement. As a result, the motion to transfer venue to Florida is denied.

In the alternative, defendants' motion seeks to compel the parties to arbitrate their claims consistent with the Dispute Resolution clause with in the Agreement. The

Agreement provides, “[t]o the fullest extent permitted by law, all disputes arising out of and related to this Agreement (hereinafter “Dispute” or “Disputes”) shall be resolved exclusively by neutral binding arbitration in accordance with Chapter 682, Fla. Stat. by an arbitrator that is mutually selected by the parties.” (Robertson Decl., ¶ 9, Ex. A, ¶ k.)

“[W]hen a petition to compel arbitration is filed and accompanied by prima facie evidence of a written agreement to arbitrate the controversy, the court itself must determine whether the agreement exists and, if any defense to its enforcement is raised, whether it is enforceable. Because the existence of the agreement is a statutory prerequisite to granting the petition, the petitioner bears the burden of proving its existence by a preponderance of the evidence. If the party opposing the petition raises a defense to enforcement - either fraud in the execution voiding the agreement, or a statutory defense of waiver or revocation (see § 1281.2, subds. (a), (b)) - that party bears the burden of producing evidence of, and proving by a preponderance of the evidence, any fact necessary to the defense.” (*Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal. 4th 394, 413.)

Here, defendants have met their burden of demonstrating the existence of an agreement to arbitrate the claims arising from the Amazon Ecommerce Store Management Service Agreement as alleged in the operative First Amended Complaint. (Robertson Decl., ¶ 9, Ex. A, ¶ k.)

In opposition, plaintiff does not contest signing the agreement but argues he was fraudulently induced to sign the agreement and would not have signed if he knew of defendants' plan to take undisclosed profits from him. (Elsayed Decl., ¶¶ 8-9.) A contract fraudulently induced is voidable. (*Rosenthal, supra*, 14 Cal.4th at p. 415.)

“When a party to a contract containing an arbitration clause asserts fraud in the inducement of the contract *generally*, the assertion is no bar to the arbitration of the contract. [¶] The separable arbitration clause is considered valid, and the parties must arbitrate whether the contract was induced by fraud (even though a finding of fraud in the inducement may result in rescission of the contract as a whole).” (*Brown v. Wells Fargo Bank, N.A.* (2008) 168 Cal.App.4th 938, 958, citing *Rosenthal, supra*, at pp. 415-417.)

Plaintiff's claim for fraudulent inducement does not preclude enforcement of the arbitration clause within the agreement.¹ Accordingly, the court intends to grant defendants' motion to compel arbitration of plaintiff's claims in accordance with the parties' agreement.

¹ The Agreement at issue also includes a choice of law provision agreeing that the laws of the State of Florida shall govern any dispute relating to the agreement. (Robertson Decl., ¶9, Ex. A, ¶ l.) Neither party argues whether Florida law is intended to govern the enforcement of the arbitration provision, however it appears in accord with California law that an attack on the validity of the contract as a whole rather than specifically attacking the arbitration provision will not bar claims from being submitted to arbitration. (See *Simpson v. Cohen* (Fla. 4th DCA 2002) 812 So.2d 588, 590 [“It is well established that a dispute must be arbitrated where a complaint alleges fraud seeking to avoid or invalidate an entire agreement, rather than just the arbitration clause within the agreement.”].)

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC **on** August 12, 2026.
(Judge's initials) (Date)